

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.
COMPLAINANT

v.

OMNI LOGISTICS LLC,
RESPONDENT.

**RESPONSE TO THE MOTION TO DISMISS AND
CROSS-MOTION FOR LEAVE TO AMEND THE COMPLAINT**

**TPG PRESSURE INC.'S RESPONSE TO
RESPONDENT'S MOTION TO DISMISS**

Omni's Motion to Dismiss is fatally flawed because (1) Omni is NVOCC subject to FMC jurisdiction; (2) Omni bases its arguments on allegations not found in the complaint and such allegations must be disregarded; and (3) TPG sufficiently pleaded its case in the complaint and is not required to plead every detail of it.

A. Background

TPG Pressure Inc. ("TPG" or "Claimant") filed a *Verified Complaint Pursuant to 46 U.S.C. § 41301(a)* (the "Complaint") against Omni Logistics LLC ("Omni" or "Respondent"), which was served on Omni November 29, 2022. In the Complaint, TPG alleges that Omni is and was at all relevant times (1) a licensed "non-vessel operating common carrier" ("NVOCC") with license number 18469 and (2) a "common carrier" within the meaning of 46 U.S.C. § 40102(7) or (3) an "ocean transportation intermediary" ("OTI") within the meaning of 46 U.S.C. § 40102(17), subject to regulation by the Federal Maritime Commission (the "Commission").

Compl. ¶¶ 4-5. TPG further alleges that Omni violated the Shipping Act of 1984 46 U.S.C. § 41102(c), 46 C.F.R. §§ 545.4 and 545.5; and 46 U.S.C. §41104(a)(10). *Id.* at ¶ 9. In summary, TPG alleges that Omni (a) failed to substantiate demurrage, detention, chassis, and other charges on its invoices to TPG, (b) failed to provide invoices in a timely manner, at times invoicing TPG four months after the alleged charges were incurred or failing to provide the invoices at all, (c) refused to provide documentation to support the invoice charges despite numerous requests. *Id.* at ¶¶ 16, 17-12, 25, 26. TPG alleges that it was forced to pay more than \$860,000 in unsubstantiated charges for Omni to liberate its cargo, and Omni is still claiming an additional \$362,123.94 in unsubstantiated charges. *Id.* at ¶¶ 22, 24.

On January 24, 2023, Omni filed a *Motion to Dismiss For Lack of Subject Matter Jurisdiction and for Failure to State a Claim Upon Which Relief Can Be Granted* (the “Motion”). The Motion argues that (a) Omni was not acting as a common carrier in relation to TPG, (b) TPG alleges insufficient detail as to the violation of 46 § 41102(c), and (c) that 46 U.S.C. §§ 41104(a)(15) and 41104(d) are not retroactive and therefore cannot encompass Omni’s violations. In support of its positions, Omni attaches a number of exhibits and declarations, which should not be considered on a motion to dismiss and raise factual issues that require discovery.

B. Standard of Review on a Motion to Dismiss

Although the Commission’s Rules of Practice and Procedure (the “Rules”) do not explicitly provide for motions to dismiss, the Commission Rule 12 provides that the Federal Rules of Civil Procedure are followed in instances that are not covered by the Rules. 46 C.F.R. § 502.12. “In evaluating whether a complaint before the Commission states a cognizable claim under the Shipping Act, the Commission has relied on Federal Rules of Civil Procedure 12(b)(6)

and federal case law interpreting it.” *Logfret, Inc. v. Kirsha, B.V. et al.*, FMC Docket No. 18-10, 2019 FMC LEXIS 110, *4-5 (Sept. 17, 2019). Federal Rule of Civil Procedure 12(b) permits a party to raise, by motion, lack of subject matter jurisdiction (12(b)(1)), lack of personal jurisdiction (12(b)(2)), and failure to state a claim (12(b)(6)). F.R.C.P. 12. The “party asserting subject-matter jurisdiction, has the burden of proving its existence by a preponderance of the evidence.” *Logfret*, 2019 FMC LEXIS 110, *5, citing *Garanti Finansal Kiralama A.S. v. Aqua Marine & Trading, Inc.*, 697 F.3d 59, 65 (2d Cir. 2012). Pursuant to Federal Rule 10(c), exhibits attached to a complaint are considered part of the complaint for all purposes. F.R.C.P. 10(c). When deciding a facial jurisdictional attack, courts “accept the well-pleaded factual allegations in the complaint as true.” *Logfret*, 2019 FMC LEXIS 110, *5.

At this early stage, “Rule 12(b)(6) does not require ‘the pleading of specific evidence or extra facts beyond what is needed to make the claim plausible.’” *Id.* (citations omitted). Instead, the “complaint’s factual allegations ‘must be enough to raise a right to relief above the speculative level’ and must ‘nudge claims across the line from conceivable to plausible.’” *Id.* (citations omitted). “To survive motions to dismiss for failure to state a claim under Rule 12(b)(6), a complaint must contain sufficient factual matter, accepted as true, to “state a claim to relief that is plausible on its face.” *Id.* at *5-6 (citations omitted). “A claim ‘has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.’” *Id.* (citations omitted).

“When there are well-pleaded factual allegations, a court should assume their veracity and then determine whether they plausibly give rise to an entitlement to relief.” *Id.* citing *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). The Commission “construe[s] the factual allegations in the complaint in the light most favorable to the plaintiff and must grant the plaintiff the benefit

of all inferences that can be derived from the facts as alleged in the complaint. *Id.* at *6. The facts pled must “allow the Commission reasonably to infer that [the practice alleged] constituted an unreasonable preference or prejudice,” but need not be pled with the heightened particularity required for fraud cases. *Maier Terminals, LLC v. the Port Authority of New York and New Jersey*, Docket 12-02, 2015 FMC LEXIS 43, *21-22 (Dec. 18, 2015).

Importantly, “[c]ourts ruling on 12(b)(6) motions cannot consider factual allegations raised in briefs, especially when they contradict the allegations in the complaint.” *Id.* at *24 (citing *Henthorn v. Dep’t of Navy*, 29 F.3d 682, 688 (D.C. Cir. 1994)). Accordingly, the Commission should disregard affidavits attached to Omni’s Motion and factual allegations in the brief that are based on those affidavits. Only those facts that are alleged in the complaint can be considered operative for the purposes of the motion to dismiss.

C. TPG Has Sufficiently Pled that Omni Is A “Common Carrier” or NVOCC

Omni does not and cannot refute that it is a common carrier or NVOCC, but merely alleges that it did not act as a common carrier or NVOCC with respect to TPG’s shipments. Mot. at 2, 15. To support its argument, Omni relies on factual allegations not made in the complaint, which the Commission must ignore. *Maier Terminals*, 2015 FMC LEXIS at *24. Omni then invents a distinction between “factual” and “facial” attacks on jurisdiction that does not exist. Mot. at 5. In support of this alleged distinction, Omni relies on a motion to dismiss filed by respondents in *Marine Transp. Logistics, Inc. v. CMA-CGM (America), LLC*, Docket No. 22-23, on October 3, 2022. However, unfortunately for Omni, the ultimate order on that motion to dismiss, however, states that the claimant had “sufficiently pled that the complaint involves a matter arising under the Shipping Act and that CCA acted as a common carrier with regard to the subject shipments,” and therefore, the Commission had jurisdiction to adjudicate the claims.

Marine Transp. Logistics, Inc. v. CMA-CGM (America), LLC, 2022 FMC LEXIS 540 (Dec. 8, 2022). The Commission further notes that “A ruling on the veracity of [claimant’s] allegations is premature prior to discovery. Allowing the case to proceed to discovery would help determine whether [respondent] acted as a common carrier with regard to the shipments at issue. This raises a factual issue ...” *Id.* at *8-9. That is consistent with the situation in the case at hand, where Omni contested factual allegations of the complaint directly relevant to the issue of whether Omni acted as a common carrier and NVOCC with respect to the TPG’s shipments.

In *Marine Transport Logistics*, the Formal Verified Complaint alleged that the respondent was a “vessel operating common carrier duly licensed by the [Commission].” *Marine Transp. Logistics, Inc. v. CMA-CGM (America), LLC*, Formal Verified Compl. (Sept. 7, 2022) at ¶ 3. Here, TPG made a similar allegation, asserting that Omni is an NVOCC, and either OTI or a “common carrier.” Compl. ¶¶ 4-5. The Complaint in this action elaborates on TPG’s role in the claims asserted, stating that “TPG contracted Omni (while it was still known as Epic Freight Service) to provide carriage of containers from ports outside the United States to ports in the United States or to TPG’s job sites in the United States through ports in the United States.” Compl. ¶ 11.

The Shipping Act defines and regulates a number of different types of entities involved in the international shipment of goods by water, including two types of OTIs. “The term ‘ocean transportation intermediary’ means an ocean freight forwarder or a non-vessel-operating common carrier” (i.e., a NVOCC). 46 U.S.C. § 40102(20). “The term ‘ocean freight forwarder’ means a person that -- (A) in the United States, dispatches shipments from the United States via a common carrier and books or otherwise arranges space for those shipments on behalf of shippers; and (B) processes the documentation or performs related activities incident to those

shipments.” 46 U.S.C. § 40102(19) (emphasis added). As TPG was importing to the United States, not exporting, Omni could not have been acting as a freight forwarder. Accordingly, taking the fact alleged in the Complaint in the light most favorable to TPG, as the Commission is required to do, Omni must have been acting as an NVOCC.

In any event, as in *Marine Transport Logistics*, TPG has alleged sufficient facts as to Omni’s role at the motion to dismiss stage, a ruling on the veracity of TPG’s allegation is premature, and discovery will help determine Omni’s actual role in the events at issue. The need for discovery is strong here because allegations made by Omni in its supporting declarations are contradicted by documentary evidence. For example, Omni contends that it was a mere back-office processor of payments made to Epic. However, TPG ordered Omni’s services pursuant to purchase orders directed to Omni, and Omni issued invoices in its own name. Examples of such purchase order and an invoice are attached to the Declaration of TPG’s General Manager-FRP Products, Beza Basiri. See Basiri Decl., Exs. A, B, and C. Accordingly, TPG and Omni had a direct contractual relationship. By no means, did Omni act as a mere payment processor. It was retained by TPG to provide transportation services, including international ocean transport.

Although the respondent relies on *Auction Block Company and Harbor Leasing, LLC, v. The City of Homer and Port of Homer*, Docket No. 12-03, 2014 FMC LEXIS 16, *5 (Aug. 12, 2014), that decision is inapposite. By the time the Initial Decision was rendered in *Auction Block*, the complaint and been answered, motions to compel had been filed, briefed, and resolved, and a motion for summary judgment had been filed, briefed, and decided; discovery had inevitably taken place. Docket No. 12-03, available at <https://www2.fmc.gov/readingroom/proceeding/12-03/>. Here, discovery has not yet been exchanged. The same is true of Respondent’s reliance on *Crocus Investments, LLC and Crocus, FZE v. Marine Transport Logistics, Inc., et al.*, Docket

No. 15-04, 2019 FMC LEXIS 44, *1, 1 F.M.C.2d 403, 403 (July 16, 2019). There, the opinion notes, “after completing discovery, the parties briefed their respective positions. The ALJ heard closing arguments ...” *Id.* at *7. These cases support TPG’s position that, as the Commission found in *Marine Transport Logistics*, 2022 FMC LEXIS 540, a determination on the veracity of TPG’s allegations in the Complaint would be premature at this stage, as no discovery has taken place. Accordingly, the Respondent’s Motion must be denied.

D. TPG Has Sufficiently Pled its Claims Pursuant to 46 U.S.C. § 41102(c) (Count I)

Omni argues that TPG has not alleged “any level of factual detail” regarding the “normal, customary, and continuous basis” of Omni’s conduct and therefore the allegation is a mere legal conclusion and fails to properly state a claim. Mot. at 13. This is patently false, as TPG alleges in the Complaint the Omni’s practices that violate § 41102(c) “began at the latest on or about November 2021 and lasted to at least October 2022 and applied to at least 227 containers.” Compl. ¶ 23. The 227 containers and throughout a year is “is something habitually performed and it implies continuity,” not “an occasional transaction”. *Investigation of Certain Practices of Stockton Elevators*, 8 F.M.C. 178, 201 (FMC 1964); *see also Way Interglobal Network, LLC v. Shenzhen Unifelix SCM Limited*, Docket No. 22-28, 2023 FMC LEXIS 3 (Jan. 4, 2023) (finding that twenty containers at issue were sufficient to support the finding of a “practice”). For the purposes of a motion to dismiss, this allegation is presumed to be true and is sufficient to meet the pleading standard on a motion to dismiss. *Logfret*, 2019 FMC LEXIS 110, *5.

Omni next asserts that the Complaint does not state enough facts to support the allegation that Omni has engaged in an unjust or unreasonable practice. Mot. at 13. In fact, TPG has alleged numerous instances of unjust and unreasonable practices, including but not limited to (1) Omni’s refusal to provide substantiating evidence for excessive demurrage charges that do not align with TPG’s records, Compl. ¶¶ 18-21, 25, 26; and (2) Omni’s attempt to collect on that unreasonable

debt by refusing to release cargo. Compl. ¶ 22. *See, e.g., Total Fitness Equip. v. Worldlink Logistics, Inc.*, 28 S.R.R. 534, 542 (FMC 1998), *aff'd sub nom. Worldlink Logistics, Inc. v. Federal Maritime Comm'n*, 203 F.3d 54 (D.C. Cir. 1999) (attempting to collect an unreasonable debt by refusing the release of cargo held a violation of the Shipping Act).

Omni's reliance on *Carlstar Group LLC F/k/a Carlisle Transportation Products, Inc. and Ctp Transportation Products, LLC v. Uti, United States, Inc. et al.*, 2018 FMC LEXIS 45, at *16, 1 F.M.C.2d 103, 122rl (May 18, 2018), is misplaced. In *Carlstar*, the Commission dismissed the § 41102(c) claim because "Carlstar did not respond to UTi's argument on section 41102(c) in its response to the motion" and therefore abandoned the issue. 2018 FMC LEXIS at *35. Further, *Carlstar* does not address the same issue addressed in the Complaint—detention and demurrage charges, which are explicitly addressed in 46 C.F.R. § 545.5. By its plain language, the rule "applies to practices and regulations relating to demurrage and detention for containerized cargo. For purposes of this rule, the terms demurrage and detention encompass any charges, including "per diem," assessed by ocean common carriers, marine terminal operators, or ocean transportation intermediaries." 46 C.F.R. § 545.5(b). The regulation further states:

The Commission may consider in the reasonableness analysis the existence, accessibility, content, and clarity of policies implementing demurrage and detention practices and regulations, including dispute resolution policies and practices and regulations regarding demurrage and detention billing. In assessing dispute resolution policies, the Commission may further consider the extent to which they contain information about points of contact, timeframes, and corroboration requirements.

46 C.F.R. § 545.5(d). To this point, TPG alleged that "Omni's quotations did not include information about "demurrage," as such term defined by 46 CFR § 545.5 or provide information as to where information about demurrage can be found" and "Omni never informed TPG about its policies with respect to demurrage. Upon information and belief, Omni has no such policies."

Compl. ¶ 13-14. Accordingly, TPG has alleged sufficient facts to state a claim under § 41102(c) and Omni's Motion must be denied.

E. 46 U.S.C. § 41104 Is Retroactive (Count II)

Omni's allegation that 46 U.S.C. § 41104 is not retroactive is foreclosed by precedent. *Crocus Invs., LLC v. Fed. Mar. Comm'n*, No. 21-1199, 2022 U.S. App. LEXIS 21125, at *2 (D.C. Cir. July 29, 2022) ("*Crocus II*") (approving the retroactive application of 46 C.F.R. § 545.4). As long as the rulemaking does not "work a 'manifest injustice'," the Commission may apply a new agency rule retroactively. *Id.* "[A] non-exhaustive list of five factors" guides a court's analysis of whether retroactivity is manifestly unjust in a particular case:

(1) [W]hether the particular case is one of first impression, (2) whether the new rule represents an abrupt departure from well established practice or merely attempts to fill a void in an unsettled area of law, (3) the extent to which the party against whom the new rule is applied relied on the former rule, (4) the degree of the burden which a retroactive order imposes on a party, and (5) the statutory interest in applying a new rule despite the reliance of a party on the old standard.

Crocus II, 2022 U.S. App. LEXIS 21125 at * 2 (citing *Retail, Wholesale & Dep't Store Union v. NLRB*, 466 F.2d 380, 390 (D.C. Cir. 1972)). Applying these factors here "does not justify departing from the normal rule allowing retroactive application." *Crocus Invs., LLC v. Marine Transport Logistics, Inc.*, FMC Docket No. 15-04, 2021 FMC LEXIS 125, at *9 (Aug. 18, 2021) ("*Crocus I*").

The Case Is Not One of First Impression

This factor "recognizes that a number of reasons call for the application of a new rule to the parties to the adjudicatory proceeding in which it is first announced." *Id.* at *9 (citing *Retail, Wholesale & Dep't Store Union v. NLRB*, 466 F.2d 380, 390-92 (D.C. Cir. 1972)) (internal quotation marks and citations omitted). This is not the first case in which unreasonable practices

in connection with billing demurrage and other charges is being argued or discussed. The new rule, however, does not depart from the Interpretive Rule on Demurrage and Detention Under the Shipping Act published in 2020. Instead, the Commission revised its previous rule to “further clarify” reasonable rules and practices. Ocean Shipping Reform Act of 2022, PL 117-146, June 16, 2022, 136 Stat 1272 (“OSRA-22”). Further, the Commission issued the rule *sua sponte*, not at the request of a party in a particular proceeding.

The Rule Does Not Represent an Abrupt Departure

The Ocean Shipping Reform Act of 2022, which is the source of the current text of § 41104, specifically states that it:

shall only seek to further clarify reasonable rules and practices related to the assessment of detention and demurrage charges to address the issues identified in the final rule published on May 18, 2020, entitled ‘Interpretive Rule on Demurrage and Detention Under the Shipping Act’ (or successor rule), including a determination of which parties may be appropriately billed for any demurrage, detention, or other similar per container charges.

Ocean Shipping Reform Act of 2022, PL 117-146, June 16, 2022, 136 Stat 1272. As such, the current § 41104 fills gaps in the previous version and elaborates on the meaning of “unreasonable and unjust” with respect to detention charges, particularly under 46 C.F.R. § 545.5, entitled “Interpretive Rule on Demurrage and Detention Under the Shipping Act”. “This factor does not weigh that heavily against the general rule [of allowing retroactivity], however, because the Commission’s prior interpretation of § 41104 was not that old or that well-established.” *Crocus I*, 2021 FMC LEXIS 125, at *11. Omni was already required to comply as of at least May 18, 2020. § 41104 now gives specific guidance on section (d) of 46 C.F.R. § 545.5 as to what precise behavior is considered unjust or unreasonable. Accordingly, the revised § 41104 is not a departure at all from the Commission’s practice, and this factor weighs in favor of the retroactive application.

Omni Could Not Have Relied on Former Jurisprudence or Rulemaking

Omni does not assert, and there is no evidence, that it relied on any prior interpretation of 46 C.F.R. § 545.5 and § 41104 before the enactment of OSRA-22 when deciding how to address issues concerning additional charges such as demurrage and detention. What constitutes reliance in a retroactivity analysis is a showing that the party “changed or conformed its [non-litigation] conduct based on that prior interpretation and is now being unfairly penalized for doing so.” *Crocus II*, 2021 U.S. App. LEXIS 125 at *11. For example, in *Retail, Wholesale*, “the company against whom the agency was applying its new rule had previously conformed its conduct to a well-established and long-accepted standard, and was confronted with the agency’s attempt to punish conduct that complied with its former rule, but not with its newly-adopted policy.” *Crocus I*, 2021 FMC LEXIS 125, at *12; *Retail, Wholesale*, 466 F.2d at 391. Here, Omni admits some invoices were issued after OSRA-22 became effective, but there is no evidence that its practices changed in any way. Mot. at 15 (stating “the vast majority of invoices ... were issued before” the date OSRA-22 became effective).

Applying § 41104 Would Not Impose a Burden On Omni

Because Omni did not rely on any previous or contrary interpretation of § 41104 from OSRA-22, it cannot be burdened. This is not a situation in which the Commission is penalizing or imposing liability on a regulated entity that relied in “good faith” on the Commission’s prior interpretation of statutory intent. *Crocus I*, 2021 U.S. App. LEXIS 125, at *12. Omni is simply being held to the same standard as Congress intended to apply via 46 C.F.R. § 545.5 and § 41104 to carriers.

The Statutory Interest Cuts in Favor of Applying the Statute Retroactively Here

Among the purposes of the Shipping Act is to establish a nondiscriminatory regulatory process for ocean common carriage, 46 U.S.C. § 40101(1), and the “primary objective of the shipping laws administered by the [Commission] is to protect the shipping industry’s customers, not members of the industry,” *Crocus I*, 2021 FMC LEXIS 125, at *13, citing *N.Y. Shipping Ass’n v. Fed. Mar. Comm’n*, 854 F.2d 1338, 1374 (D.C. Cir. 1988) (quoting *Boston Shipping Ass’n v. Fed. Mar. Comm’n*, 706 F.2d 1231, 1238 (1st Cir. 1983)). There is also an interest in reigning in practices that “negatively affect the broader shipping public,” 83 Fed. Reg. at 45367; *Crocus I*, 2021 FMC LEXIS 125, at *13.

At a minimum, in any event, the invoices issued after OSRA-22 are properly subject to this action.

F. Conclusion

Based on the foregoing, TPG respectfully requests that the Commission deny Omni’s Motion to Dismiss.

CROSS-MOTION FOR LEAVE TO AMEND THE COMPLAINT

TPG Pressure, Inc., through its undersigned counsel, files its cross-motion for leave to amend the complaint. A proposed redline version of the proposed amended complaint is attached hereto as Exhibit A. Pursuant to Commission Rule 71(a), counsel for TPG reached out to counsel for Omni on February 8 informing of TPG's intent to file a cross-motion to amend the complaint and requesting Omni's consent to the cross-motion. However, Omni's counsel failed to respond.

A. Introduction and Procedural Background

On November 29, 2022, a Notice of Filing of Complaint and Assignment a Notice of Filing of Complaint and Assignment ("Notice") was issued for this proceeding by the Federal Maritime Commission ("FMC" or "Commission"), stating that Thompson Pipe Group, Inc. (TPG or "Complainant")¹ had filed a complaint against Omni Logistics LLC ("Omni") alleging that Omni violated 46 U.S.C. §§ 41102(c), 41102(d), and 41104(a) of the Shipping Act in its practices, and assessment of charges, including demurrage and other non-freight charges, related to the movement of containers.

On January 24, 2023, Omni filed a motion to dismiss TPG's complaint ("Dismissal Motion") alleging *inter alia* that Omni is not a proper party to the dispute. See Dismissal Motion at 2. Omni alleges that it was simply performing back-office services on behalf of its subsidiary Epic Freight Solutions LLC ("Epic") with which TPG allegedly actually contracted. *Id.* at 2-3. Omni alleges that its role was limited to the issuance of invoices for services rendered arranging for inland drayage of containers. *Id.* at 3.

¹ The caption of the Verified Complaint inadvertently stated the name of the Complaint as TPR Pressure, Inc. while the body of the complaint referred to TPG Pressure, Inc. TPG Pressure, Inc. is a correct name of the Complainant. Accordingly, it is respectfully requested that the caption be amended to reflect the correct name of the Complainant as TPG Pressure, Inc.

B. Discussion

Commission Rule 66(a) provides in pertinent part that amendments “will be permitted or rejected, either in the discretion of the Commission or presiding officer. No amendment will be allowed that would broaden the issue, without opportunity to reply to such amended pleading and to prepare for the broadened issues.” 46 C.F.R. § 502.66(a).

Although the Commission’s rules do not provide criteria for evaluating whether to grant or deny a motion to amend a complaint, Commission Rule 12 provides that “for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.” 46 C.F.R. § 502.12. Under Federal Rule 15(a)(1)(B), “a party may amend its pleading once as a matter of course” within 21 days after service of a responsive pleading. F.R.C.P. 15(a)(1)(B). After that period, an amended pleading is permitted with the opposing party’s written consent or leave of court, which should be freely given when justice so requires. F.R.C.P. 15(a)(2). “Denial of leave to amend therefore constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments.” *Bancoult v. McNamara*, 214 F.R.D. 5, 8 (D.D.C. 2003) (citations omitted); see also *Foman v. Davis*, 371 U.S. 178, 182 (1962).

Here, the proposed amended complaint addresses the issue of the proper party raised by Omni. Because Omni contends that it was only providing back-office services, which is denied, and that actual services were provided by its subsidiary Epic, TPG is seeking to amend the complaint to name Epic as an additional respondent. The proposed amended complaint also

provides additional factual allegations supporting TPG's claims. Although TPG believes that the original complaint provided sufficient factual allegations, the additional factual allegation will assist the Commission in addressing any other possible Omni's motions. There are no grounds under the Federal Rules warranting denial of the proposed amendments. Furthermore, the amended complaint is not futile as Omni's motion to dismiss is not warranted and should be denied as forth above.

C. Conclusion

Based on the foregoing, TPG respectfully requests the Commission's leave to amend the original complaint.

Dated: February 9, 2023
Washington, D.C.

Respectfully submitted,

FISHERBROYLES LLP

By: /s/Tiffany N. Compres
Tiffany N. Compres (Fl Bar. No. 78118)
tiffany.compres@fisherbroyles.com
Tel: (305) 342.2957
1221 Brickell Avenue, Suite 900
Miami, Florida 33131

Gene M. Burd (D.C. Bar No. 1004330)
gene.burd@fisherbroyles.com
Tel: (202) 750.0529
1200 G Street NW, Suite 800
Washington, D.C. 20005

*Counsel for Complainant
Thompson Pipe Group, Inc.*

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

~~THOMPSON PIPE GROUP~~ TPG PRESSURE, INC.
COMPLAINANT

v.

EPIC FREIGHT SOLUTIONS LLC and
OMNI LOGISTICS LLC,
~~RESPONDENT~~ RESPONDENTS.

[PROPOSED] FIRST AMENDED VERIFIED COMPLAINT
PURSUANT TO 46 U.S.C. § 41301(a)

Complainant TPG PRESSURE INC. (“Complainant” or “TPG”), by its undersigned attorneys, files this First Amended Verified Complaint Pursuant To 46 U.S.C. § 41301(a) (the “Amended Complaint”) against Epic Freight Solutions LLC (“Epic”) and Omni Logistics, LLC (“Respondent” or “Omni”; Omni and Epic together are “Respondents”), seeking reparations for injuries to TPG caused by Respondent’s unjust and unreasonable practices in connection with billing demurrage and other charges in violation of Shipping Act of 1984, 46 U.S.C. § 40101, *et. seq.* as amended by the Ocean Shipping Reform Act of 2022 as applicable, and regulations thereunder including, but not limited to, 46 CFR part 545, and the principles set forth in Interpretive Rule on Demurrage and Detention Under the Shipping Act, 46 CFR § 545.5.

I. PARTIES

1. TPG is a corporation organized under the laws of the State of Texas with a principal place of business at 1003 Macarthur Blvd, Grand Prairie, TX 75050, with an email address at bmalkenhorst@thompsonpipegroup.com.

2. The names and addresses of the attorneys representing the Complainant are: (1) Tiffany N. Compres, FisherBroyles LLP, 1221 Brickell Avenue, Suite 900, Miami, Florida, tiffany.compres@fisherbroyles.com, and (2) Gene M. Burd, FisherBroyles LLP, 1200 G Street NW, Suite 800, Washington, D.C. 20005, gene.burd@fisherbroyles.com.

3. Upon information and belief, Epic Freight Solutions LLC at all relevant times was and is a limited liability company organized under the laws of the State of Wyoming with its current mailing address at 3200 Olympus Blvd., Suite 420, Dallas, Texas 75019.

3.4. Upon information and belief, Omni Logistics LLC (~~f/k/a Epic Freight Service~~) is and was at all relevant times was and is a limited liability company organized under the laws of the State of ~~Texas~~ Delaware with its current mailing address at 3200 Olympus Blvd., Suite 420, Dallas, Texas 75019.

5. At all relevant times, Epic was and is a licensed non-vessel-operating common carrier (NVOCC), License No. 027656, within the meaning of 46 U.S.C. § 40102(17).

4.6. At all relevant times, Omni was and is a licensed non-vessel-operating common carrier (NVOCC), License No. ~~18469~~-18469, within the meaning of 46 U.S.C. § 40102(17).

5.7. At all relevant times, Epic and Omni ~~was~~ ~~aware~~ “common ~~carrier~~ carriers” within the meaning of ~~the~~ 46 U.S.C. § 40102(7) or “ocean transportation ~~intermediary~~ intermediaries”

within the meaning of 46 U.S.C. § 40102(~~17~~20), subject to regulation by the Federal Maritime Commission (the “Commission”). The email addresses currently known for ~~Respondent~~both Respondents are dkinney@omnilogistics.com and bheathcock@omnilogistics.com.

II. JURISDICTION

~~6.8.~~ The Commission has subject-matter jurisdiction over this Amended Complaint pursuant to the Shipping Act of 1984.

~~7.9.~~ This Amended Complaint is being filed pursuant to 46 U.S.C. § 41301(a).

~~8.10.~~ The Commission has personal jurisdiction over TPG Respondents as a “common carrier”carriers,” as defined in 46 U.S.C. § 40102(~~7~~), and as a licensed “non-vessel-operating common carrier”,” as defined in 46 U.S.C. § 40102(17).

~~9.11.~~ Respondent’s Respondents’ actions alleged herein constitute: (1) failures by Respondent Respondents to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of TPG, in violation of 46 U.S.C. § 41102(c) and 46 C.F.R. §§545.4 and 545.5; and (2) unreasonable refusal to deal or negotiate with TPG, in violation of 46 U.S.C. Section 41104(a)(10).

III. FACTUAL ALLEGATIONS

~~10.12.~~ TPG is a supplier and installation contractor of concrete, steel, fiberglass, and polymer pipes and structures; used for drainage, sanitary, pressure, and trenchless applications. Products used by TPG are imported from outside the United States, including from such countries as Turkey, Colombia, and others.

~~11.13. In 2021, TPG contracted Omni (while it was still known as) relied on Epic Freight Service) to provide transportation services to provide carriage of containers products, including containerized cargo, from ports outside the United States to ports in the United States or to TPG's job sites in the United States through ports in the United States via ocean carriage. The services were provided on the basis of purchase orders, which listed freight services and their prices, and which were issued by TPG to Epic. The invoices for services were issued by Epic to TPG.~~

~~12. — Omni provided its services on the basis of purchase orders TPG issued or quotations Omni issued. Both the purchase orders and quotations provided fixed prices for ocean freight and certain other charges.~~

~~14. — Omni's In or about the summer of 2021, Epic informed TPG that it was partnering with Omni as Omni's wholly owned subsidiary. Epic also informed TPG that it was "rebranding to Omni Logistics LLC" and that its headquarters were now in Dallas, Texas, instead of in California. At about the same time, Epic's invoices started listing payment directions to Omni. Epic's personnel with whom TPG communicated did not change and remained the same.~~

~~15. — In or about the spring of 2022, TPG started issuing purchase orders for [ocean and land?] freight services to Omni, and Omni started issuing invoices to TPG in its own name. The personnel with whom TPG communicated did not change. For example, David Ikemoto, the former Epic's Director of International Operations, became Omni's Logistics Director of International Operations.~~

~~16. — At all relevant times, Respondents held themselves out to the general public to provide transportation by water of passengers or cargo between the United States and a foreign~~

country for compensation and assumed responsibility for the shipment of cargo in its own name.

In particular, and without limitation:

- a. Respondents obtained licenses to operate as NVOCC from the Commission.
- b. Respondents maintained a copy of their tariffs for public review as required by the Commission's regulations.
- c. Respondents did not disclose that they acted on behalf of a NVOCC or VOCC subject to such NVOCC or VOCC's control.
- d. Respondents maintained public websites where they advertised their shipping and freight services as "all in" or "door-to-door" for international shipping needs. See Exhibit A. That evidence that Respondents assume the responsibility for the shipment of cargo in their own name.
- e. Respondents provided shipping quotations based on "door-to-door" terms from places outside the United States to places within the United States, which represented that they would assume the responsibility for the shipment of the cargo.
- f. Omni's Terms and Conditions, which Omni published on its own behalf and on behalf of its subsidiaries, stated that Omni acted as an independent contractor in performing or procuring services for customers and not an agent of customers. See Exhibit B, ¶¶ 1(b), 2. Accordingly, Omni and its subsidiaries assumed responsibility for the shipment of cargo in its own name.
- g. Omni's Terms and Conditions attempted to limit its and its subsidiaries' liability for the ocean shipment of cargo under the Hague Rules and Hague-Visby Rules applicable to ocean carriers. See Ex. B ¶ 5.
- h. Omni's Terms and Conditions provide for the procedure for claims against Omni for loss or damage to cargo, which evidences that Omni (including its subsidiaries as provided by the Terms and Conditions) assumed the responsibility for the shipment of cargo, including ocean transportation.
- i. Respondents' quotations provided to TPG included shipment "door to door." Based on these quotations ~~did not include~~ and email exchanges, it was clear that Respondents would use ocean transportation to carry TPG's cargo, that they would assume the responsibility for the transportation, and use a vessel to carry the cargo from places outside the United States to the United States.

17. Accordingly, for the purposes of its relationship with TPG, Respondents were common carriers within the meaning of the Shipping Act.

~~13.18.~~ Neither Epic's nor Omni's quotations included information about "demurrage," as ~~such term~~ defined by 46 CFR § 545.5, or ~~provide~~provided information as to where information about demurrage can be found.

~~14.19.~~ Neither Epic nor Omni ~~never~~ informed TPG about ~~its~~their policies with respect to demurrage. Upon information and belief, ~~Omni has~~Respondents have no such policies.

~~15.20.~~ For all relevant shipments, ~~Omni~~Respondents conducted negotiations with ~~the~~ ocean ~~carrier~~carriers, including, but not limited to, providing information about the cargo and parties, such as the shipper and consignee. TPG was not involved in such negotiations and had no prior knowledge of the identity of the ocean carrier and ~~their~~its policies with respect to demurrage.

~~16.21.~~ In or about November 2021, ~~Omni began issuing~~ invoices issued to TPG ~~that included~~began including demurrage, storage, and other charges that TPG found to be excessive. ~~All of the~~ Moreover, these invoices ~~were issued by Omni~~failed to provide any explanation as to the reasons for such charges or ~~by its predecessor to provide information that would allow~~ TPG ~~on their respective letterheads~~to evaluate the validity of such charges. Applicable bills of lading were issued by various entities, including by agents on behalf of unnamed principals.

~~17.22.~~ An incomplete list of invoices subject to this Amended Complaint is attached hereto as Exhibit AB. TPG is in the process of gathering ~~all~~the necessary information and will submit a complete list of all invoices and bills of lading subject to the Amended Complaint as soon as possible. Respondents are in possession, custody, and control of all invoices and relevant information, and TPG expects to obtain them through discovery in this case.

~~18.23.~~ Omni's Respondents' invoices and supporting documentation were utterly insufficient to enable TPG to assess the propriety of demurrage charges and to mitigate damages. In particular, ~~Omni~~the Respondents' invoices and supporting documentation failed to include the following information:

- a. Date when the respective container was made available;
- b. The allowed free time;
- c. The start date of free time;
- d. The end date of free time;
- e. The applicable detention or demurrage rule on which the daily rate was based;
- f. The applicable rate or rates per the applicable rule;
- g. Appropriate contact information for questions or requests for mitigation of fees;
~~And~~and
- h. A statement that the charges are consistent with any of the Commission rules with respect to detention and demurrage.

~~19.24.~~ Moreover, Omni Respondents provided ~~its~~their invoices to TPG with up to four ~~months~~months' delay after the respective ocean carrier invoices were issued, making mitigation of damages practically impossible. In some instances, Omni Respondents even demanded payment on invoices that had never been provided to TPG.

25. During the process of the receiving, handling, storage, or delivery of cargo, Respondents failed to provide TPG with timely information regarding allowed free time, start date of free time, the end of free time, the applicable detention or demurrage rules, the applicable rates, which interfered with TPG's ability to receive the cargo free of unnecessary demurrage, storage, detention, and other charges, and caused delays in the shipment.

26. Further, the Respondents attempted to collect unreasonable and unsupported alleged debts from TPG by holding the cargo hostage. See Exhibit C.

27. Incredibly, just before the filing of the initial Complaint, ~~Omni~~ in this action, Respondents submitted TPG demurrage invoices for deliveries that took place in January 2022, which is a delay of nine months. At that point, TPG was powerless to do anything to avoid the alleged demurrage charges.

20.28. Even with the Respondents being on notice of the dispute, these belated invoices did not include copies of supporting bills of lading and other documents ~~explaining~~ supporting the demurrage charges. ~~Omni~~ Respondents also failed to explain why it took ~~it~~ them nine months to prepare and submit TPG the demurrage invoices. Again, the belated information about demurrage charges denied TPG the ability to receive the cargo free of unnecessary demurrage, storage, detention, and other charges, and caused delays in the shipment.

24.29. Furthermore, some invoices inexplicably included up to nine days of chassis charges, where TPG's records indicated that containers and chassis were returned on the same day as they ~~have been~~ were delivered to the destination.

22.30. Despite the ongoing dispute regarding demurrage charges, and under objections, TPG paid in excess of \$860,000 for demurrage and other additional charges to ~~Omni~~ Respondents so that ~~Omni~~ Respondents would release the cargo.

23.31. The foregoing ~~Omni~~ Respondents' practices began ~~at the latest on or as early as~~ about November 2021 and lasted ~~to~~ until at least October 2022 and applied to at least 227 containers.

24.32. ~~Omni~~ Respondents presently further ~~demands~~ demand that TPG pay an additional \$362,123.94 for alleged services and costs.

~~25.33.~~ TPG repeatedly requested that OmniRespondents provide information supporting ~~itsthe~~ charges, but ~~Omni~~they refused. Moreover, OmniRespondents terminated TPG's access to a shared internet location that hosted a file that tracked shipments and associated fees and costs. Accordingly, TPG is unable to verify the veracity of the charges ~~Omni-has~~Respondents have assessed.

~~26.34.~~ In an attempt to resolve this matter, TPG, through its counsel, submitted to OmniRespondents a demand for documentation supporting ~~itstheir~~ charges. However, ~~Omni~~the Respondents, responding through counsel, refused to do so and once again demanded payment of the allegedly outstanding balance of \$362,123.94.

IV. **VIOLATIONS BY OMNIRESPONDENTS**

COUNT I – VIOLATION OF 46 U.S.C. § 41102(c)

~~27.35.~~ TPG realleges each allegation above as if fully set forth herein.

~~28.36.~~ ~~Omni-is-a~~Both Respondents are common ~~carrier or ocean transportation~~ intermediarycarriers within the meaning of 46 U.S.C. § 40102:~~(7)~~ or ocean transportation intermediaries within the meaning of 46 U.S.C. § 40102(20).

~~29.37.~~ Section 41102(c) requires a common carrier or ocean transportation intermediary “to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.”

~~30.38.~~ Section-§ 41102(c) applies to practices and regulations relating to demurrage and detention for containerized cargo. *See* 46 CFR § 545.5(b). For purposes of Section 545.5, the terms demurrage and detention encompass any charges, including “per diem,” assessed by ocean

common carriers, marine terminal operators, or ocean transportation intermediaries (“regulated entities”) related to the use of marine terminal space (e.g., land) or shipping containers, not including freight charges.

31.39. The foregoing customary, continuous, and ongoing conduct by OmniRespondents in connection with its respective receipt, handling, storage, and delivery of the property of TPG constitutes a failure by OmniRespondents to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of TPG and other shippers, in violation of 46 U.S.C. § 41102(c).

32.40. The Commission has adopted an interpretive rule to establish guidance for determining whether practices with respect to demurrage and detention are unjust and unreasonable. *See* Docket No. 19-05, 46 CFRC.F.R. § 545.5 (the “Interpretive Rule”). The Interpretive RulesRule, *inter alia*, provides that:

(c)*Incentive Principle.* In assessing the reasonableness of demurrage and detention practices and regulations, the Commission will consider the extent to which demurrage and detention are serving their intended purposes as financial incentives to promote freight fluidity.

(2) Particular Applications of Incentive Principle. -- (i) Cargo Availability. The Commission may consider in the reasonableness analysis the extent to which demurrage practices and regulations relate demurrage or free time to cargo availability for retrieval.

* * *

(iii) Notice of cargo availability. In assessing the reasonableness of demurrage practices and regulations, the Commission may consider whether and how regulated entities provide notice to cargo interests that cargo is available for retrieval. The Commission may consider the type of notice, to whom notice is provided, the format of notice, method of distribution of notice, the timing of notice, and the effect of the notice.

* * *

(d) Demurrage and detention policies. The Commission may consider in the reasonableness analysis the existence, accessibility, content, and clarity of policies implementing demurrage and detention practices and regulations, including dispute resolution policies and practices and regulations regarding demurrage and detention billing. In assessing dispute resolution policies, the Commission may further consider the extent to which they contain information about points of contact, timeframes, and corroboration requirements.

~~33.41.~~ The facts asserted in this Amended Complaint establish that:

- a. ~~Omni~~Respondents failed “to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property”;
- b. ~~Omni’s~~Respondents’ acts or omissions occurred on a normal, customary, and continuous basis;
- c. ~~Omni~~Respondents’ practice was unjust and unreasonable, in violation of application laws and regulations; and
- d. The practice or regulation is the proximate cause of the claimed loss.

COUNT II – VIOLATION OF 46 U.S.C. § 41104(a)(14)

~~34.42.~~ TPG realleges each allegation above as if fully set forth herein.

~~35.43.~~ 46 U.S.C. § 41104(a)(~~14~~) prohibits commons carriers, either alone or in conjunction with any other person, from directly or indirectly:

- ~~a. Assessing~~[A]ssess any party for a charge that is inconsistent or does not comply with all applicable provisions and regulations, including subsection (c) of 46 U.S.C. § 41102 or part 545 of title 46, Code of Federal Regulations ~~(or successor regulations). 46 U.S.C. § 41104(a)(14).~~
- ~~b. Invoice any party for demurrage or detention charges unless the invoice includes information as described in 46 U.S.C. § 41102(d) showing that such charges comply with — (A) all provisions of part 545 of title 46, Code of Federal Regulations (or successor regulations); and (B) applicable provisions and regulations, including the principles of the final rule published on May 18, 2020, entitled “Interpretive Rule on Demurrage and Detention Under the Shipping Act” (or successor rule).~~

~~36.44.~~ 46 U.S.C. § 41102(d) requires that invoices for demurrage or detention charges include the following accurate information:

- a. Date that container is made available~~;~~
- b. The port of discharge~~;~~
- c. The container number or numbers~~;~~
- d. The allowed free time in days~~;~~
- e. The start date of free time~~;~~
- f. The end date of free time~~;~~
- g. The applicable detention or demurrage rule on which the daily rate is based~~;~~
- h. The applicable rate or rates per the applicable rule~~;~~
- i. The total amount due~~;~~
- j. The email, telephone number, or other appropriate contact information for questions or requests for mitigation of fees~~;~~
- k. A statement that the charges are consistent with any of Federal Maritime Commission rules with respect to detention and demurrage~~;~~ and
- l. A statement that the common carrier's performance did not cause or contribute to the underlying invoiced charges.

~~37.45.~~ Invoices submitted by OmniRespondents failed to ~~included~~include information required by law.

~~38.46.~~ Failure by OmniRespondents to include in the invoices information required by 46 U.S.C. § 41102(d) constitutes a failure to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property as provided by 46 U.S.C. § ~~40102~~41102(c).

~~39.47.~~ The facts asserted in this Amended Complaint establish that:

- a. OmniRespondents failed “to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property~~;~~

- b. Omni's Respondents' acts or omissions occurred on a normal, customary, and continuous basis-;
- c. Omni Respondents' practice was unjust and unreasonable in violation of application applicable laws and regulations-; and
- d. The practice or regulation is the proximate cause of the claimed loss.

48. Accordingly, Respondents violated 46 U.S.C. § 41104(a)(14) by assessing TPG for charges that are inconsistent and do not comply with all applicable provisions and regulations.

49. Respondent's violations caused TPG damages in the form of unjust and improper charges and forced TPG to file this action.

COUNT III – VIOLATION OF 46 U.S.C. § 41104(a)(15)

50. TPG realleges each allegation above as if fully set forth herein.

51. 46 U.S.C. § 41104(a)(15) prohibits commons carriers, either alone or in conjunction with any other person, from directly or indirectly:

[I]nvoice any party for demurrage or detention charges unless the invoice includes information as described in 46 U.S.C. § 41102(d) showing that such charges comply with—(A) all provisions of part 545 of title 46, Code of Federal Regulations (or successor regulations); and (B) applicable provisions and regulations, including the principles of the final rule published on May 18, 2020, entitled “Interpretive Rule on Demurrage and Detention Under the Shipping Act”.

52. 46 U.S.C. § 41102(d) requires that invoices for demurrage or detention charges include the following accurate information:

- a. Date that container is made available;
- b. The port of discharge;
- c. The container number or numbers;

- d. The allowed free time in days;
- e. The start date of free time;
- f. The end date of free time;
- g. The applicable detention or demurrage rule on which the daily rate is based;
- h. The applicable rate or rates per the applicable rule;
- i. The total amount due;
- j. The email, telephone number, or other appropriate contact information for questions or requests for mitigation of fees;
- k. A statement that the charges are consistent with any of Federal Maritime Commission rules with respect to detention and demurrage; and
- l. A statement that the common carrier's performance did not cause or contribute to the underlying invoiced charges.

53. Invoices submitted by Respondents failed to include information required by law.

Further, Respondents have no detention or demurrage policies.

54. Failure by Respondents to include in the invoices information required by 46 U.S.C. § 41102(d) constitutes a failure to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property as provided by 46 U.S.C. § 41102(c).

55. Respondents' failure to have a demurrage and detention policy is a key factor in consideration of such a violation under the Interpretive Rule on Demurrage and Detention Under the Shipping Act.

56. The facts asserted in this Complaint establish that:

- a. Respondents failed "to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property;
- b. Respondents' acts or omissions occurred on a normal, customary, and continuous basis;

- c. Respondents' practice was unjust and unreasonable in violation of applicable laws and regulations; and
- d. The practice or regulation is the proximate cause of the claimed loss.

57. Respondents violated 46 U.S.C. § 41104(a)(15) because they issued invoices that do not include information required by 46 U.S.C. § 41102(d) showing that such charges comply with (A) all provisions of part 545 of title 46, Code of Federal Regulations and (B) applicable provisions and regulations, including the principles of the final rule published on May 18, 2020, entitled "Interpretive Rule on Demurrage and Detention Under the Shipping Act".

58. Respondent's violations caused TPG damages in the form of unjust and improper charges and forced TPG to file this action.

V. CAUSATION

40.59. The foregoing alleged acts and omissions of ~~Omni~~Respondents have directly and proximately injured TPG because TPG was forced to pay demurrage and other non-freight charges to ~~Omni~~Respondents on the basis of unsubstantiated invoices, and ~~Omni continues~~Respondents continue demanding that TPG pay additional charges on the basis of unsubstantiated invoices.

VI. COMPLAINANT'S DAMAGES

41.60. TPG has been~~;~~ and continues to be, actually and materially injured by ~~Omni's~~Respondents' continuous conduct in violation of the Shipping Act alleged herein.

42.61. ~~Omni's~~Respondents' violations alleged herein are causing direct, proximate, and ongoing financial damages to TPG in an amount already believed to exceed \$1,222,123 currently accruing, and to be further demonstrated in this proceeding.

VII. PRAYER FOR RELIEF

WHEREFORE, TPG respectfully requests that the Commission require OmniRespondents to answer the charges made in this Amended Complaint and prays for relief from the Commission as follows:

1. An Order, after due investigation pursuant to 46 U.S.C. Sections 41302 and 41303 and a hearing pursuant to 46 U.S.C. Section 41304, finding that Omni-hasRespondents have violated 46 U.S.C. Section 41102(c) in connection with their respective receipt, handling, storage, and delivery of the property of TPG;
2. An Order (1) compelling OmniRespondents to cease and desist from ~~violation~~violations of the Shipping Act, and (2) putting in place lawful and reasonable practices to preclude OmniRespondents from demanding that TPG pay unsubstantiated and unlawful charges.
3. An Order requiring OmniRespondents to pay TPG reparations for the unlawful conduct alleged herein in an amount to be proven pursuant to 46 U.S.C. Section 41305, with interest pursuant to 46 U.S.C. Section 41305(a), TPG's reasonable attorneys' fees as "the prevailing party" pursuant to 46 U.S.C. Section 41305(e), and any other sum the Commission determines to be proper; and
4. Such other and further orders or relief as the Commission deems just and proper.

Dated: ~~October 28, 2022~~February __, 2023
Washington, D.C.

Respectfully submitted,

FISHERBROYLES LLP

By: /s/Tiffany N. Compres
Tiffany N. Compres (Fl Bar. No. 78118)
tiffany.compres@fisherbroyles.com
Tel: (305) 342.2957
1221 Brickell Avenue, Suite 900
Miami, Florida 33131
Gene M. Burd (D.C. Bar No. 1004330)
gene.burd@fisherbroyles.com
Tel: (202) 750.0529
1200 G Street NW, Suite 800
Washington, D.C. 20005

Counsel for Complainant
~~Thompson Pipe Group~~ TPG Pressure, Inc.

VERIFICATION

~~Beza~~d Basiri, General Manager FRP Products of Thompson Pipe Group, Inc., pursuant to 28 USC §1746, hereby declares under penalty of perjury that he has read the foregoing Verified Complaint, and that the facts stated therein to the best of his knowledge, information, and belief is true and correct on information, belief, and upon information received from others.

~~Dated: October 28, 2022~~

~~Beza~~d Basiri,
General Manager FRP Products
Thompson Pipe Group, Inc.,
Tel. 909-330-4872
3009, N. Laurel Ave.
Rialto, CA 92377

~~bbasiri@thompsonpipegroup.com~~

4858-6910-8048, v. 1